

Satya Deo Sharma v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 19 October 2019 · WRIT - C No. 33261 of 2019 · **Writ disposed; relegated to Executive Engineer under clause 6.14; recovery subject to that decision.**

HEADNOTE

A consumer facing recovery of electricity dues who seeks installments and waiver of surcharge and interest is left to the Executive Engineer under clause 6.14 of the U.P. Electricity Supply Code, 2005. The High Court will not grant that relief on the writ; recovery remains subject to the Engineer's decision on a fresh representation.

FACTUAL SUMMARY

Satya Deo Sharma filed a writ petition in the Allahabad High Court challenging recovery of Rs.1,24,677 as electricity dues after a recovery certificate issued on 31 July 2019. He was ready to pay the entire amount if installments were fixed, and claimed entitlement to waiver of surcharge and interest, a request already made to the Executive Engineer. Notice was accepted for the distribution licensee (respondent no. 2).

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installment facility and allied relief on electricity dues

HOLDING

A prayer for fixing installments of electricity dues, and for waiver of surcharge and interest, can be considered by the Executive Engineer under clause 6.14 of the U.P. Electricity Supply Code, 2005. The writ is disposed of with liberty to file a fresh representation before the Executive Engineer within two weeks; if filed, it shall be considered in accordance with law preferably within one month, and recovery shall be subject to that decision. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO INSTALLMENTS OF THE ELECTRICITY DUES UNDER CLAUSE 6.14

¶ 1

NOT DECIDED — WHETHER SURCHARGE AND INTEREST ON THE DUES ARE LIABLE TO BE WAIVED

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